

## 24STCV32836 24STCV32836

County: los-angeles

Division: Civil Law and Motion

Department: 415

Hearing date: 2026-08-27

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Case Number: 24STCV32836 Hearing Date: August 27, 2026 Dept: 415

Tentative Ruling

Judge Rolf M. Treu, Department 415

HEARING

DATE: August

27, 2026 TRIAL

DATE: Not set.

CASE: Latrice Allen, as Administrator of the  
Estate of Ernest L. Allen, Sr. v. PHH Mortgage Service, et al.

CASE

NO.: 25STCV32836

MOTIONS TO

COMPEL DISCOVERY RESPONSES

MOVING PARTY/PARTIES: Defendant Sunset Fund III Inc.

RESPONDING PARTY/PARTIES: Plaintiff

Latrice Allen, as administrator of the Estate of Ernest L. Allen, Sr.

PROOF OF SERVICE:

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Plaintiff addresses the merits of

Defendant's motion, and thereby waived any procedural objections. (See In re Marriage of Falcone (2008))

164 Cal.App.4th 814, 826.)

#### CASE HISTORY:

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November 10, 2025: Complaint filed.

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March 4, 2026: First amended  
complaint filed.

#### STATEMENT OF MATERIAL FACTS AND/OR PROCEEDINGS:

Defendant

Sunset Fund III Inc. ("Defendant") moves to compel responses from Plaintiff

Latrice Allen, as administrator of the Estate of Ernest L. Allen, Sr.

("Plaintiff") to: Special Interrogatories, set one ("SROG"); and Requests for  
Production, set one ("RPD"). Defendant

also moves to deem admitted matters specified in Requests for Admissions, set  
one ("RFA"). Plaintiff filed oppositions

to the motions on August 19, 2026. Given

the hearing date of August 27, 2026, Plaintiff's opposition was due by August 14,  
2026. (Code Civ. Proc., § 1005, subd.

(b).) The Court therefore will not

consider the opposition papers. (Cal.

Rules of Court, rule 3.1300, subd. (d); Jack v. Ring LLC (2023) 91

Cal.App.5th 1186, 1210.)

#### TENTATIVE RULING:

Defendant's

motions to compel discovery responses are DENIED.

Moving

party to give notice, unless waived.

#### DISCUSSION:

Defendant served the SROG, RPD, and

RFA on Plaintiff on January 20, 2026 by mail and email. Then, the Court entered the parties' proposed order on February 18, 2026. That order provides, in pertinent part, "The parties agree that any previously served discovery in connection with the original Complaint shall be deemed moot and reserved, without prejudice, to be reissued as appropriate following the filing and acceptance of the First Amended Complaint." (February 18, 2026 Order.) As such, Defendant stipulated that the discovery Defendant served on Plaintiff on January 20, 2026 is moot.

Accordingly,  
Defendant's motions to compel discovery responses are DENIED.

Moving  
party to give notice, unless waived.

IT  
IS SO ORDERED.

Dated: August 27, 2026 \_\_\_\_\_

Rolf M. Treu

Judge of the Superior Court

Any party may submit on the tentative ruling by contacting the courtroom via email at [SMCDept415@lacourt.ca.gov](mailto:SMCDept415@lacourt.ca.gov) by no later than 4:00 p.m. the day before the hearing. All interested parties must be copied on the email. It should be noted that if you submit on a tentative ruling the court will still conduct a hearing if any party appears. By submitting on the tentative you have, in essence, waived your right to be present at the hearing, and you should be aware that the court may not adopt the tentative, and may issue an order which modifies the tentative ruling in whole or in part.